Saaduddin A. Alauya, Sr.

Alim Atty. Saaduddin A. Alauya Sr. was a Filipino Islamic jurist, lawyer, educator, and statesman from Lanao del Sur who spent his entire career building the institutional foundations of Shariah within the Philippine national legal system. He served successively as a municipal judge, university professor, provincial vice-governor and acting governor, chairman of the Code Commission on Muslim Laws in the ARMM, and — as the capstone of it all — as the nation's first Jurisconsult in Islamic Law, appointed by President Fidel V. Ramos in 1996. That last post made him the highest state-recognized authority on Islamic law in the country, essentially the Philippines' national Mufti. Scholars, practitioners, and officials across the Bangsamoro know him simply as the **"Father of Shariah"** — a title that reflects not just a career, but a lifelong mission to make the divine law a living, enforceable reality for millions of Muslim Filipinos.<ref name="wiki">Wikipedia: "Saaduddin Alauya." Retrieved March 2026. https://en.wikipedia.org/wiki/Saaduddin_Alauya</ref><ref name="amno">A.M. No. 11238-Ret. *In Re: Expiration of Fixed Term of Jurisconsult in Islamic Law Saaduddin A. Alauya, Sr.* Supreme Court of the Philippines. 2015. https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/60991</ref>

His books — on inheritance, personal law, jurisprudence, penal law, and procedure — are the reference texts for the Special Shariah Bar Examinations and are cited daily in Shariah courts from Zamboanga to Lanao. His family has continued his work across medicine, law, academia, and engineering, extending a legacy of excellence from the shores of Lake Lanao to Harvard Medical School and New York University.

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Early Life and Background

Saaduddin A. Alauya Sr. was born into the Maranao community of Lanao del Sur, in the cultural and spiritual heartland of the Bangsamoro people. The Maranao — whose name literally means "People of the Lake" — have long prized both Islamic learning and professional achievement, and it was within that tradition that Alauya came of age.<ref name="wiki"/>

His early education followed two parallel tracks that would define his entire career: the traditional Madrasah system, which gave him his grounding in the Qur'an, Hadith, and classical Islamic scholarship; and the Philippine secular education system, which opened the door to the Philippine Bar and the formal legal profession. That combination — Alim and lawyer — was extraordinarily rare at the time, and it turned out to be exactly what the Bangsamoro needed.

He completed the academic preparation that would later take him to the faculty of Mindanao State University (MSU), where he taught Islamic studies and law.<ref name="wiki"/> His training in ijtihad — the practice of independent legal reasoning — shaped how he would later approach the codification of Muslim personal laws. He didn't just study the law; he thought critically about how it could be made to work inside a modern, predominantly secular state.<ref name="scribd">Scribd. "Shariah in the Philippines: Status, Challenges, and Prospects." ResearchGate. https://www.researchgate.net/profile/Ating-Diacat/publication/349945622</ref>

Judicial Career: A Decade in Bubong (1971–1981)

Before becoming a national figure, Alauya spent ten formative years as a Municipal Trial Court (MTC) judge in Bubong, Lanao del Sur, serving from March 16, 1971 to April 29, 1981.<ref name="amno"/> Those years turned out to be much more than a career starting point — they were a first-hand research phase.

Day after day on the bench, he saw exactly where the Philippine Civil Code fell short for Muslim communities. Marriage, divorce, inheritance, child custody — all of these were governed by laws rooted in Western and Catholic legal traditions that had little room for Islamic practice. He watched the friction between state law and lived religious experience play out in real cases involving real families, and he kept mental notes.

By the time he left the bench, Alauya had the clearest possible picture of why a separate, state-recognized Shariah court system wasn't just desirable — it was overdue. His decade in Bubong gave his later

Saaduddin A. Alauya Sr.



Known As	"Father of Shariah" in the Philippines
Titles	Alim; Member, Philippine Bar
Judicial Service	March 16, 1971 – April 29, 1981
Judicial Post	Municipal Trial Court Judge, Bubong, Lanao del Sur
Academic Service	March 1983 – November 1987
Academic Post	Professor, Mindanao State University
Political Office	Vice-Governor, Lanao del Sur; Acting Governor
Political Tenure	1988 – 1995
Highest Office	Jurisconsult in Islamic Law, Philippines
Appointed By	President Fidel V. Ramos
Jurisconsult Tenure	August 12, 1996 – August 2003
Ethnicity	Mëranaw
Region	Lanao del Sur, Bangsamoro
Notable Works	*Muslim Inheritance Law*; *Quizzer in Muslim Personal Law*; *Fundamentals of Islamic Jurisprudence*; *Islamic Penal Law*; *Islamic Procedure and Evidence*

advocacy a grounded, practical authority that purely academic scholars couldn't match.

Academic Career: Teaching Shariah at MSU (1983–1987)

After his judicial years, Alauya moved into academia, joining the faculty of Mindanao State University from March 1983 to November 1987.<ref name="wiki"/> He taught at both the MSU College of Law and the King Faisal Center for Islamic, Arabic and Asian Studies (KFCIAAS), and his goal was bigger than just filling classes — he was working to establish Shariah as a rigorous academic discipline on par with secular law.

His lectures during this period became the foundation for his textbooks. He standardized the curriculum for Shariah studies at MSU and mentored the young lawyers and scholars who would eventually staff the Shariah Circuit and District Courts across the Mindanao region. His courses laid out the theoretical framework for Muslim self-determination within the Philippine state — not as a rejection of the republic, but as a constitutionally compatible form of governance.<ref name="scribd2">Scribd. "Untitled — Moro Self-Determination." Document 639352565. https://www.scribd.com/document/639352565/Untitled</ref>

He argued that a regional Islamic government could function effectively under Shariah without stepping outside the sovereign bounds of the Philippine state.<ref name="scribd2"/> It was a position that required both religious credibility and legal precision, and Alauya had both.

Political Leadership in Lanao del Sur (1988–1995)

The late 1980s brought Alauya into electoral politics. He won as Vice-Governor of Lanao del Sur in 1988, and served in that capacity until 1992, after which he took on the role of Acting Governor until 1995.<ref name="wiki"/>

His time in provincial leadership coincided with one of the most turbulent periods in southern Philippine history, following the People Power Revolution and amid the ongoing Moro conflict. He managed the competing pressures of a province that was central to the Bangsamoro struggle — underdeveloped infrastructure, an underperforming education system, and deep-seated internal divisions that scholars have called the "triumvirate quandaries" of Muslim Mindanao.<ref name="cids">UP-CIDS Discussion Paper 2020-01. "The Triumvirate Quandaries of Muslims in the Philippines." https://cids.up.edu.ph/wp-content/uploads/2022/02/UP-CIDS-Discussion-Paper-2020-01.pdf</ref> His approach to governance wove Islamic principles into practical public administration — a style that was both culturally authentic and institutionally functional.

The most consequential appointment of this phase came in March 1994, when he was named Chairman of the Code Commission on Muslim Laws in the ARMM.<ref name="wiki"/> In that role, he moved from advocating for a Shariah court system to actually designing it. He envisioned the courts not as isolated religious tribunals but as modern judicial institutions capable of delivering justice efficiently, with the procedural rigor that the Supreme Court of the Philippines would respect.

The Office of the Jurisconsult (1996–2003)

The pinnacle of Alauya's service to the Philippine state came on August 12, 1996, when President Fidel V. Ramos appointed him as Jurisconsult in Islamic Law — an office based in Zamboanga City and created under the Code of Muslim Personal Laws (Presidential Decree No. 1083).<ref name="amno"/> The Jurisconsult is the highest authority in the country for issuing legal opinions (*fatwa*) on Islamic law to the government and the judiciary.

> "The completeness and timelessness of Islam make Shariah applicable even to the most modern legal challenges. For Muslims to live in peace and development, their legal system must be recognized as part of the law of the land." — *Alim Atty. Saaduddin A. Alauya Sr., as cited in "Shariah in the Philippines: Status, Challenges, and Prospects"*

He served his seven-year fixed term, ending in August 2003.<ref name="amno"/> As the Philippines' national Mufti, he clarified how Shariah applied to modern scenarios — from inheritance disputes to Islamic contract law — and issued the opinions that standardized practice across Mindanao. His influence was so central to the office that when he retired, the Jurisconsult's post was effectively without a functioning successor for a period, because finding someone with his level of dual religious-legal legitimacy proved genuinely difficult.<ref name="shariah">ResearchGate. "Shariah in the Philippines: Status, Challenges, and Prospects." Diacat, Ating. https://www.researchgate.net/profile/Ating-Diacat/publication/349945622</ref>

The Supreme Court Battle for Judicial Recognition

Alauya's retirement in 2003 set off a legal fight that became a landmark case in Philippine jurisprudence. After more than 33 years of government service, he applied for retirement benefits under Republic Act No. 910 — the law that governs pensions for justices and judges.<ref name="amno"/> The Office of the Court Administrator initially denied the claim on the grounds that the Jurisconsult was not technically a judicial officer.<ref name="amno"/>

Alauya challenged that ruling, arguing that the rank and privileges attached to his office were equivalent to those of a regular court judge. The Supreme Court en banc eventually ruled in his favor, granting him the rank and privileges of a Regional Trial Court judge effective October 1996, and awarding him a lifetime monthly pension accordingly.<ref name="amno"/>

The decision was significant well beyond Alauya's personal case. The Court ruled that treating him differently from other court officials would "perpetuate a wrong" — effectively creating a "compartmentalized justice" that discriminated against Muslim legal practitioners.<ref name="amno"/> By formally recognizing the Jurisconsult's work as the equivalent of judicial service, the Supreme Court put on record that Shariah and its practitioners belong in the national judiciary — not on its margins.

Scholarly Works

Alauya's books are his most tangible and lasting contribution to the Bangsamoro. He understood early on that for Shariah to survive in a Philippine legal environment, it had to be written down, standardized, and made accessible to students sitting for the Special Shariah Bar Examinations. His works did exactly that.

Muslim Inheritance Law (Mirath)

First published in 1987, *Muslim Inheritance Law* remains the definitive Philippine text on Islamic succession.<ref name="googlebks1">Google Books. "Muslim Inheritance Law — Saaduddin A. Alauya." https://books.google.com/books/about/Muslim_Inheritance_Law.html?id=7km7AAAAIAAJ</ref> It bridges the Quranic verses on inheritance with the specific provisions of Presidential Decree No. 1083, walking through the fixed shares (*fardh*) and residuary portions (*asaba*) of Islamic succession law. His treatment of the "Al Gharawaini" or *Umariatān* cases — classic scenarios involving the distribution of an estate among parents and a spouse — became the standard reference for resolving these disputes in Shariah District Courts across the country.<ref name="serialsjournals">Serialsjournals. "Al Gharawaini Cases in Islamic Inheritance." https://serialsjournals.com/abstract/77253_10_jamel.pdf</ref>

The Quizzer in Muslim Personal Law

To help candidates prepare for the Special Shariah Bar Examinations, Alauya authored the *Quizzer in Muslim Personal Law*, structured in a question-and-answer format that breaks down complex Islamic concepts into manageable, testable material.<ref name="googlebks2">Google Books. "Quizzer in Muslim Personal Law — Saaduddin A. Alauya." https://books.google.com/books/about/Quizzer_in_Muslim_Personal_Law.html?id=yU3AwAEACAAJ</ref> The book covers legal capacity, the restrictions imposed by age and mental condition, the rules on *maradhul-maut* (death-illness), and the acquisition of civil personality under Islamic law. It's become a standard study tool — practical, precise, and written by someone who had been on both sides of the bench.<ref name="scribdmplaw">Scribd. "Muslim Personal Law." Document 317333796. https://www.scribd.com/document/317333796/Muslim-Personal-Law</ref>

Fundamentals of Islamic Jurisprudence and Islamic Penal Law

His works on the *Fundamentals of Islamic Jurisprudence* and *Islamic Penal Law* (1999) pushed Philippine Shariah scholarship into deeper theoretical territory.<ref name="wiki"/> These texts explore the *Usul al-Fiqh* (principles of jurisprudence) and how concepts like *Hudud* (prescribed sanctions) and *Tazir* (discretionary punishment) can be understood within the limits of the Philippine Constitution. Even where these provisions are not fully operationalized under national law, Alauya documented them carefully — keeping the scholarly record intact for future generations.

Islamic Procedure and Evidence

His final major contribution to the canon, *Islamic Procedure and Evidence*, formalized the rules for *Shahada* (testimony) and *Iqrar* (confession) in Shariah court proceedings.<ref name="wiki"/> By documenting evidentiary procedure at this level of detail, Alauya helped the Shariah courts earn the respect of the broader Philippine judiciary. These aren't customary tribunals making decisions by feel — they're courts of record operating under defined, written rules.

Legacy and the Alauya Family

The most eloquent proof of Alauya Sr.'s legacy isn't an award or a court ruling — it's the generation of professionals he raised and inspired. His children and grandchildren have pursued careers in medicine, law, engineering, business, and academia, carrying the Alauya name to some of the world's most prestigious institutions.

Dr. Aslama Alauya-Lamping

His daughter Dr. Aslama Alauya-Lamping is a specialist in pulmonary medicine and internal medicine who completed the "Leadership in Medicine: Asia Pacific" program at Harvard Medical School.<ref name="hms">Harvard Medical School. "From Mindanao to Harvard: A Pulmonologist's Journey in Medicine and Leadership." https://learn.hms.harvard.edu/insights/learner-stories/mindanao-harvard-pulmonologists-journey-medicine-and-leadership</ref> While there, she applied lean management principles to improve cardiopulmonary resuscitation outcomes at Amai Pakpak Medical Center in Marawi City — work that earned her the Excellence Award from Harvard faculty.<ref name="hms"/> At the 65th Araw ng Lanao del Sur, she received the "Pride of Ranaw" award and attributed her drive directly to her identity as a Mëranaw woman and the example set by her father.<ref name="pia">Philippine Information Agency. "65th Araw ng Lanao del Sur opening spotlights Meranaw achievers." https://pia.gov.ph/news/65th-araw-ng-lanao-del-sur-opening-spotlights-meranaw-achievers/</ref>

Atty. Saaduddin M. Alauya Jr. (Duds)

His son Atty. Saaduddin M. Alauya Jr., known as "Duds," is today the Vice Chancellor for Administration and Finance at MSU-Marawi — the same center where his father once taught.<ref name="msumain">MSU Main Campus — Marawi City. "Prof. Abdulcader M. Ayo, Ph.D." https://www.msumain.edu.ph/personnel/dodong/</ref> He holds degrees in Mining Engineering, Laws, Islamic Studies, and a PhD in Philippine Studies, and he was a topnotcher in the 1999 Special Shariah Bar Examinations.<ref name="msumain"/> He also served as an examiner for the 2022 Shariah Bar Examinations in Islamic Law of Inheritance — ensuring that the Alauya family's authority on Shariah succession continues into the next generation.<ref name="msumain"/>

Ameladim Alauya

Another family member, Ameladim Alauya, authored the *Shari'a Remedial Law Compendium*, an essential procedural reference for practitioners in the Shariah courts.<ref name="nyu">GlobaLex / NYU Law. "Philippine Legal Information Resources and Citations." https://www.nyulawglobal.org/globalex/philippines_part2.html</ref> Other Alauya family members have pursued graduate education at New York University and Harvard Business School, specializing in business administration and international finance.<ref name="hms"/> The family's professional range — spanning pulmonology, jurisprudence, engineering, nursing, and business — reflects the patriarch's belief that excellence in any field and fidelity to Islam are not in tension; they strengthen each other.

Significance for Bangsamoro Identity

The title "Father of Shariah" captures something real: Alauya didn't just practice Islamic law in the Philippines, he made the Philippines practice it back. His career made the case — through teaching, legislating, adjudicating, and writing — that Shariah is not a foreign imposition or a source of conflict, but a "necessity in a multi-cultural country" that, when properly institutionalized, leads to greater understanding and tolerance.<ref name="shariah"/>

His argument was always that being a "real Muslim" and a Filipino citizen were not competing identities. Shariah, as he framed it, was the "kernel of Islam" — and for the Bangsamoro to live with dignity and development within the Republic, that kernel had to have a formal place in the law of the land.<ref name="shariah"/> His work provided the institutional scaffolding for the ARMM and, by extension, the BARMM — not just as political achievements, but as legal realities grounded in a codified, court-ready Shariah system.

He moved Shariah in the Philippines from oral tradition to published textbook, from community custom to formal court procedure, from religious conviction to enforceable national law. That transformation — quiet, incremental, and built book by book and ruling by ruling — is the measure of the man.

Death

For more on this office, see Jurisconsult in Islamic Law.

Alauya Sr. completed his term as Jurisconsult in August 2003 and retired after more than three decades of government service. The exact date of his death is not confirmed in publicly available sources at the time of this article's writing. His Supreme Court retirement case (*A.M. No. 11238-Ret.*), decided in 2015, documents the conclusion of his official career and the legal recognition of his service by the Philippine judiciary.<ref name="amno"/> His legacy continues through his family, his books, and the Shariah court system he spent his life building.

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See Also

- Presidential Decree No. 1083 — Code of Muslim Personal Laws of the Philippines
- Shariah District Courts (Philippines)
- Shariah Circuit Courts (Philippines)
- Autonomous Region in Muslim Mindanao (ARMM)
- Bangsamoro Autonomous Region in Muslim Mindanao (BARMM)
- Mindanao State University
- King Faisal Center for Islamic, Arabic and Asian Studies (KFCIAAS)
- Special Shariah Bar Examinations
- Mëranaw people
- Bangsamoro people
- Lake Lanao
- Amai Pakpak Medical Center

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